

Mohammad Nayeem Khan v. State of U.P. & Others

High Court of Judicature at Allahabad · Division Bench · 5 August 2025 · 2025:AHC:132056-DB · Writ-C No. 3040 of 2022 · **The writ petition — challenging a recovery notice dated 10.12.2021 for Rs. 74,387 that the Court had prima facie observed rested on impossible/fictitious consumption (1296 units in 24 days on a 1 KW connection) — was, more than three years later and with the petitioner absent even in a revised call, disposed of and consigned to record as no cause of action was found to survive; liberty was granted to the petitioner to apply for recall, variation or modification if the cause of action still survives.**

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HEADNOTE

A 1 KW domestic consumer challenged a recovery notice dated 10.12.2021 (for Rs. 70,058, shown as Rs. 74,387) founded on a bill-cum-disconnection notice dated 19.10.2021 that recorded 1296 units of consumption in 24 days. The Division Bench (Kesarwani and Banerji, JJ.) observed, prima facie, that such consumption was impossible on a 1 KW sanctioned load with no excess load or demand and prima facie showed the creation of fictitious demands, and it repeatedly directed the respondents to file counter affidavits (imposing cost of Rs. 1,000 on a defaulting respondent). The petitioner invoked the Code's non-payment framework — temporary disconnection under Para 4.36, minimum charges under Para 4.37 and permanent disconnection after six months under Para 4.37 read with Para 4.38. The matter was never decided on merits: more than three years later, listed among the oldest pending cases and with the petitioner absent even in a revised call, a different Bench found that no cause of action survived, disposed of the writ and consigned it to record, granting the petitioner liberty to apply for recall, variation or modification if the cause of action still survives.

FACTUAL SUMMARY

The petitioner, Mohammad Nayeem Khan, a domestic consumer with a sanctioned load of 1 KW, challenged a recovery notice dated 10.12.2021 issued by respondent no. 4 (for Rs. 70,058, later shown as Rs. 74,387) and sought a mandamus to decide his representation dated 24.12.2021. The bill-cum-disconnection notice dated 19.10.2021 recorded consumption of 1296 units for the 24-day period 26.9.2021 to 19.10.2021. By order dated 18.2.2022 the Division Bench noted the petitioner's reliance on Paras 4.36, 4.37 and 4.38 of the U.P. Electricity Supply Code, 2005 (temporary disconnection on non-payment, minimum charges, and permanent disconnection after six months), and on 22.4.2022 recorded that the 1296-unit figure prima facie appeared impossible on the sanctioned load and prima facie showed the creation of fictitious demands, directing the respondents to file counter affidavits; the licensee's counsel stated the demand had been affirmed on deciding the representation. Through 2022 the Court passed further orders (including cost of Rs. 1,000 on respondent no. 2 for a non-responsive affidavit, and a time-extension order). The matter then lay pending until 5.8.2025, when, the petitioner not appearing even in the revised call, a different Bench (Saraf and Giri, JJ.) disposed of it as consigned to record for want of a surviving cause of action, with liberty to seek recall.

REUSABLE CONSTRUCTIONS

1. A demand based on consumption grossly disproportionate to the sanctioned load — here 1296 units in 24 days on a 1 KW connection with no excess load or demand — prima facie appears impossible and points to the creation of a fictitious demand, warranting a counter affidavit from the licensee explaining it. [order of 22.4.2022](#)
2. Under the U.P. Electricity Supply Code, 2005, non-payment of dues within the time allowed by the bill-cum-disconnection notice leads to temporary disconnection under Para 4.36, minimum charges under Para 4.37, and, if the dues remain unpaid for six months, permanent disconnection under Para 4.37 read with Para 4.38. [order of 18.2.2022](#)
3. Where the petitioner does not appear even in a revised call and, on perusal of the record, no cause of action survives, the writ petition may be disposed of and consigned to record, with liberty to apply for recall, variation or modification if the cause of action still survives. [order of 5.8.2025](#)

Demand grossly disproportionate to the sanctioned load is prima facie a fictitious demand (interim observation)

QUESTION

Is a recovery demand based on consumption grossly disproportionate to the sanctioned load (1296 units in 24 days on a 1 KW connection with no excess load) sustainable?

HOLDING

The Court observed, prima facie, that consumption of 1296 units in 24 days on a 1 KW sanctioned load, with no excess load or demand, appears to be impossible and prima facie shows the creation of fictitious demands, and it repeatedly directed the respondents to file counter affidavits addressing this (imposing cost on a defaulting respondent). These were interim, prima facie observations, referable to the billing and disconnection framework of Paras 4.36-4.38 invoked by the petitioner; the writ was ultimately disposed of without any decision on merits when no cause of action was found to survive. **order of 22.4.2022**

EVIDENCE “the respondent have shown electricity consumption of 1296 units which, prima facie, appears to be impossible in view of the sanctioned load and absence of excess load/demand.” **order of 22.4.2022**

EVIDENCE “This, prima facie, shows creation of fictitious demands against the petitioner.” **order of 22.4.2022**

FLAG Source is an order-sheet across many dates (18.2.2022-5.8.2025); not paginated, so pins reference the order dates. The fictitious-demand observations are interim (Kesarwani and Banerji, JJ.); the final disposal (5.8.2025, Neutral Citation 2025:AHC:132056-DB) is by a different Bench and decides nothing on merits.

INTERPLAY · OFFTOPIC::no-cause-of-action-survives-consigned-to-record

RATIO

Long-pending writ disposed and consigned to record where the petitioner is absent and no cause of action survives, with liberty to recall

QUESTION

How may a long-pending writ be dealt with where the petitioner does not appear even in a revised call and no cause of action appears to survive on the record?

HOLDING

The writ petition may be disposed of and consigned to record on the footing that no cause of action survives, with liberty granted to the petitioner to file an application for recall, variation or modification of the order in accordance with law if the cause of action still survives. The petition here, listed among the oldest pending cases and unattended by the petitioner even in the revised call, was disposed of on that basis. **order of 5.8.2025**

EVIDENCE “it appears that no cause of action survives, and accordingly, the matter is consigned to record.” **order of 5.8.2025**

EVIDENCE “The writ petition is disposed of.” **order of 5.8.2025**

EVIDENCE “liberty is granted to the petitioner(s) to file an application for recall/variation/modification of this order in accordance with law.” **order of 5.8.2025**

PRINCIPLE TAGS

demand-disproportionate-to-sanctioned-load-prima-facie-fictitious 1296 units billed in 24 days on a 1 KW connection with no excess load was held, prima facie, impossible and indicative of a fictitious demand requiring explanation by the licensee. **order of 22.4.2022**

disconnection-framework-paras-4-36-to-4-38-for-non-payment The petitioner relied on the Code's graduated non-payment framework (temporary disconnection, minimum charges, permanent disconnection after six months) to attack the recovery notice. **order of 18.2.2022**

writ-consigned-for-no-surviving-cause-of-action-with-liberty-to-recall With the petitioner absent even in the revised call and no cause of action surviving on the record, the writ was disposed of and consigned to record, with liberty to seek recall. **order of 5.8.2025**

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE LEGALITY OF THE RECOVERY NOTICE DATED 10.12.2021 AND WHETHER THE DEMAND (BASED ON 1296 UNITS IN 24 DAYS ON A 1 KW CONNECTION) WAS FICTITIOUS

Never decided on merits; despite prima facie observations and repeated directions for counter affidavits, the writ was disposed of for want of a surviving cause of action when the petitioner did not appear, with liberty to seek recall. [order of 5.8.2025](#)

RELATED CASES — SEE ALSO

SCJ-060 — M/S Mohit Paper Mills (2011) — impossibility reasoning: a demand/assessment cannot rest on presumptive or physically implausible figures.

SCJ-1269 — Ashok Kumar Ajmera (2012) — Para 4.36 (bill-cum-disconnection framework); a challenge to a provisional demand relegated to the statutory appeal.

SCJ-2220 — Executive Engineer, DVVNL (2022) — Clause 4.38: the manner of permanent disconnection and the consequential adjustment of dues and refund of security.

SCJ-2641 · Mohammad Nayeem Khan v. State of U.P. & Others · 2025:AHC:132056-DB · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.